

2:00 PM LINE 2

24-CLJ-03985 DISCOVER BANK VS. ROSA A GUERRA

DISCOVER BANK
ROSA A GUERRA

CHRISTINE SIDUGUEN

Plaintiff Discover Bank's Motion to Enter Judgment Pursuant to Stipulation

TENTATIVE RULING:

APPEAR

Plaintiff should be prepared to address (1) the significance of the fact plaintiff was never served with a summons in this case (or whether the proof of service simply wasn't filed); (2) how plaintiff verified defendant's current address for the purpose of serving this motion; (3) whether defendant has made payments after November 25, 2025; and the (4) the effect of plaintiff's failure to execute the stipulation until November 25, 2025 (after the purported breach had already occurred) and then signing this motion the next day in light of *Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 304-05.

2:00 PM LINE 3

24-CLJ-08355

WELLS FARGO BANK, N.A. VS. SIAOSI E FOLAU JR

WELLS FARGO BANK, N.A.
SIAOSI E FOLAU JR

HARLAN M. REESE
PRO SE

Plaintiff Wells Fargo Bank, N.A.'s Motion for Judgment on the Pleadings

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A.'s unopposed Motion for Judgment on the Pleadings is DENIED.

To the extent that it is even necessary for the Court to judicially notice the file in the instant case, Plaintiff's unopposed Request for Judicial Notice ("RJN") is GRANTED pursuant to Evidence Code Section 452 (d).

As a preliminary matter, Plaintiff Wells Fargo Bank, N.A. ("Wells Fargo") has failed to comply with the meet-and-confer requirements of Code of Civil Procedure section 439, subdivision (a). Before filing a motion for judgment on the pleadings, the moving party must meet and confer "in person, by telephone, or by video conference" with the party whose pleading is being challenged. (Code Civ. Proc., § 439, subd. (a).) The motion must then be accompanied by a declaration stating either the means by which the parties met and conferred or that the other party failed to meet and confer in good faith. (*Id.*, at subd. (a)(3).)

The declaration here shows only that Wells Fargo sent a letter to Defendant Siaosi E Folau Jr.: that letter both fails to request a meeting in person, by telephone, or by video conference and states Wells Fargo's intention to file the motion notwithstanding any absence of a sufficient meeting and conferral. (Apr. 6, 2026 Declaration of Anthony Lio, ¶ 1, exh. A ["If we are unable to reach a settlement prior to the hearing date, we will proceed said (sic) hearing"].) Whether in the discovery or pleading context, meeting and conferring requires "a serious effort at negotiation." (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) The letter, expressing an intent to file the motion regardless and merely inviting Folau to ensure Wells Fargo fulfills its prefiling obligations, does not demonstrate that a serious effort has been made.

The Court nevertheless reached the merits of the motion and denies it on those merits.

"A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. Except as provided by CCP § 438, the rules governing demurrers apply—motion for judgment on the pleadings is equivalent to a demurrer." Motion for Judgment on the Pleadings, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-D (quotations and citations omitted). "A motion by plaintiff (or cross-complainant) can be made on the ground that the complaint states facts sufficient to constitute a cause of action against the defendant (or cross-defendant) and the answer does not state facts sufficient to constitute a defense to the complaint." *Id.* (citing Code of Civil Procedure Section 438(c)(1)(A)).
